

1 ENGROSSED HOUSE
2 BILL NO. 3344

By: Williams and Archer of the
House

3 and

4 Bullard of the Senate

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7 [Foster care - requirements - foster parents -
8 penalties - false or fraudulent - application or
9 information - codification - effective date]
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13 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

14 SECTION 1. NEW LAW A new section of law to be codified
15 in the Oklahoma Statutes as Section 1-7-111.1 of Title 10A, unless
16 there is created a duplication in numbering, reads as follows:

17 A. Persons applying to be foster parents shall:

18 1. Be at least twenty-one (21) years of age; provided, however,
19 that persons who are potential kinship foster parents shall be at
20 least eighteen (18) years of age;

21 2. Reside lawfully in the United States;

22 3. Have healthy relationships, whether married, single,
23 separated, or divorced. Unhealthy relationships include, but shall
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1 not be limited to, a relationship with an abusive partner or a
2 person with a history of violence;

3 4. Have the ability to manage personal and household financial
4 needs without relying on the foster care maintenance payment;

5 5. Earn at least one hundred one percent (101%) of the Federal
6 Poverty Level for the calendar year for the prospective household
7 size if a child or children were placed in the household;

8 6. Provide verification that the primary caregiver of the
9 prospective child or children to be placed is in sufficiently good
10 physical and mental health to provide for the individual needs of
11 each child;

12 7. Provide a minimum of two (2) letters of recommendation from
13 respected and prominent individuals within the prospective foster
14 parent's or parents' community. Such persons may include, but shall
15 not be limited to, ministers, priests, and teachers as defined in
16 Section 1-116 of Title 70 of the Oklahoma Statutes;

17 8. Maintain a home that is adequately furnished and decorated,
18 maintained to a good standard of cleanliness and hygiene, free from
19 any foul or offensive odor, and in good order throughout;

20 9. Fulfill the Department of Human Services policy on
21 background investigations for all household members who are thirteen
22 (13) years of age and older;

23 10. Have no history of confirmed child abuse, neglect or sexual
24 abuse;

- 1 11. Have a working vehicle;
- 2 12. Be able to provide appropriate sleeping arrangements for
- 3 each child placed;
- 4 13. Complete all required training in a timely manner;
- 5 14. Comply with the Department's rules on discipline;
- 6 15. Ensure that outdoor spaces which are part of the premises
- 7 are safe, secure, and well-maintained; and
- 8 16. Demonstrate the basic competencies to:
 - 9 a. protect and nurture children who have been abused,
 - 10 emotionally maltreated, or neglected,
 - 11 b. meet the medical and developmental needs of the
 - 12 children,
 - 13 c. support relationships between children and their
 - 14 parents, siblings, and kin, as specified by the
 - 15 Department of Human Services,
 - 16 d. connect children to safe, nurturing relationships,
 - 17 e. collaborate with the Department as a team member,
 - 18 f. not smoke in the home when a child is placed in the
 - 19 home,
 - 20 g. not smoke in the automobile when transporting a child
 - 21 placed in the home,
 - 22 h. have extended family or friends to provide support and
 - 23 child care other than, or in addition to, licensed
 - 24 child care paid by the Department,

- 1 i. share parenting of the child with the parents, who may
2 have different values and lifestyles,
3 j. be willing to actively mentor the parent to help
4 improve the parent's ability to safely care for the
5 child, and
6 k. be willing to accept placement of siblings, if it is
7 appropriate for siblings to be placed together.

8 B. Any person who willfully makes a false or fraudulent
9 application or who willfully provides any false or fraudulent
10 information in order to meet the requirements of subsection A of
11 this section, or any person who willfully aids or abets another in
12 making such false or fraudulent application or who willfully aids or
13 abets another in providing any false or fraudulent information in
14 order to assist such person in meeting the requirements of
15 subsection A of this section, upon conviction, shall be guilty of a
16 misdemeanor punishable by a fine not less than Five Hundred Dollars
17 (\$500.00) nor more than One Thousand Dollars (\$1,000.00) and shall
18 be disqualified from becoming a foster parent.

19 SECTION 2. This act shall become effective November 1, 2026.
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1 Passed the House of Representatives the 9th day of March, 2026.

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4 Presiding Officer of the House
5 of Representatives

6 Passed the Senate the ____ day of _____, 2026.

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9 Presiding Officer of the Senate